

LATHAM & WATKINS LLP

August 25, 2026

BY EDIS

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. International Trade Commission
500 E Street, S.W., Room 112
Washington, DC 20436

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Re: **Dkt. No. 3930: *Certain Dynamic Random Access Memory (DRAM) Devices, Products Containing the Same, and Components Thereof (III)***

Dear Secretary Barton:

Complainant Netlist, Inc. (“Netlist” or “Complainant”) submits the following information as a supplement to its Complaint:

1. Paragraph 4.3 of the Complaint should be replaced with the following: “Pursuant to Commission Rules §§ 210.10(b)(1) and 210.12(a)(12), the categories of products accused (collectively, “Accused Products”) are certain DRAM devices (specifically, DDR5 generation DIMM), and products containing the same (such as servers, computing systems, and storage systems), and components thereof.”
2. The following subheading is inserted before paragraph 9.10:
 - a. **Significant Investment in Facilities**
3. The following subheading is inserted before paragraph 9.11:
 - b. **Significant Employment of Labor**
4. The following subheading is inserted before paragraph 9.12:
 - c. **Substantial Investment in Patent Exploitation**
5. The following paragraphs are added after paragraph 10.11:
 - 10.11(a). The ’523 Patent is the subject of a civil action in the U.S. District Court for the Central District of California, filed on August 10, 2026, and naming Micron

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Semiconductor Products, Inc. and Micron Technology, Inc. as defendants. *See Netlist, Inc. v. Micron Tech., Inc.*, No. 8:26-cv-02167 (C.D. Cal.).

10.11(b). The '523 Patent is the subject of a declaratory judgment action in the U.S. District Court for the District of Delaware, filed August 10, 2026, by Micron Semiconductor Products, Inc. and Micron Technology, Inc. against Netlist, seeking a declaratory judgment of non-infringement. *See Micron Tech., Inc. v. Netlist, Inc.*, No. 1:26-cv-01014 (D. Del.).

6. The following paragraphs are added after paragraph 10.20:

10.21. The '407 Patent is the subject of a civil action in the U.S. District Court for the Central District of California, filed on August 10, 2026, and naming Micron Semiconductor Products, Inc. and Micron Technology, Inc. as defendants. *See Netlist, Inc. v. Micron Tech., Inc.*, No. 8:26-cv-02167 (C.D. Cal.).

10.22. The '407 Patent is the subject of a declaratory judgment action in the U.S. District Court for the District of Delaware, filed August 10, 2026, by Micron Semiconductor Products, Inc. and Micron Technology, Inc. against Netlist, seeking a declaratory judgment of non-infringement. *See Micron Tech., Inc. v. Netlist, Inc.*, No. 1:26-cv-01014 (D. Del.).

Thank you for your attention to this matter. Please do not hesitate to contact the undersigned with any questions about this submission.

Respectfully submitted,

/s/ Kevin C. Wheeler

Kevin C. Wheeler
of LATHAM & WATKINS LLP

Counsel for Complainant Netlist, Inc.